

In the Supreme Court of the United States

REPUBLICAN NATIONAL COMMITTEE, ET AL.
APPLICANTS,

v.

DEMOCRATIC NATIONAL COMMITTEE, ET AL.

THE WISCONSIN STATE LEGISLATURE,
APPLICANTS,

v.

DEMOCRATIC NATIONAL COMMITTEE, ET AL.

EMERGENCY APPLICATION FOR STAY

To the Honorable Brett M. Kavanaugh
Associate Justice of the Supreme Court of the United States and
Circuit Justice for the Seventh Circuit

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PARTIES TO THE PROCEEDING AND RELATED PROCEEDINGS

The parties to the proceeding below are as follows:

Applicants Republican National Committee and the Republican Party of Wisconsin were intervenor defendants in the district court and appellants in the court of appeals.

Applicant Wisconsin Legislature moved for and was denied intervention in the district court. It was an appellant in the court of appeals, which found it to have standing and to be a proper intervenor in this action.

Respondents are the Democratic National Committee, the Democratic Party of Wisconsin, Sylvia Gear, Makekeh K. Hakami, Patricia Ginter, Claire Whelan, Wisconsin Alliance for Retired Americans, League of Women Voters, Reverend Greg Lewis, Souls to the Polls, Voces de la Frontera, Black Leaders Organizing for Communities, American Federation of Teachers, Local, 212, AFL-CIO, SEIU Wisconsin State Council, and League of Women Voters of Wisconsin. Respondents were plaintiffs in the consolidated cases before the district court and appellees in the court of appeals.

Defendants below Marge Bostelmann, Julie M. Glancey, Ann S. Jacobs, Dean Knudson, Robert F. Spindell, Jr., Mark L. Thomsen are the members of the Wisconsin Election Commission. Defendant below Meagan Wolfe is the Commission's administrator. None of these defendants below have appealed the district court's injunction.

The related proceedings below are:

1. *Democratic National Committee, et al. v. Bostelmann, et al.* Nos. 20-1538, 20-1539, 20-1545 & 20-1546 (7th Cir.) – Judgment entered April 3, 2020;
2. *Democratic National Committee, et al. v. Bostelmann, et al.*, No. 3:20-cv-249 (W.D. Wis.) – Judgment entered April 2, 2020;
3. *Gear, et al. v. Dean Knudson, et al.*, No. 3:20-cv-278 (W.D. Wis.) -- Judgment entered April 2, 2020; and
4. *Lewis, et al. v. Knudson, et al.*, No. 3:20-cv-284 (WMC) (W.D. Wis.) – Judgment entered April 2, 2020.

CORPORATE DISCLOSURE STATEMENT

Per Supreme Court Rule 29, Applicants the Republican National Committee, the Republican Party of Wisconsin, and the Wisconsin State Legislature state that they have no parent companies or publicly-held companies with a 10% or greater ownership interest in them.

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TO THE HONORABLE BRETT M. KAVANAUGH, ASSOCIATE JUSTICE OF THE SUPREME COURT OF THE UNITED STATES AND CIRCUIT JUSTICE FOR THE SEVENTH CIRCUIT:

The district court below ordered that Wisconsin voters can continue to vote absentee *after election day*, even though no party asked the court to grant such extraordinary relief, nor submitted any evidence justifying that remedy. The district court issued this order five days before Wisconsin's scheduled April 7 election, for which absentee voting had been in process for more than a month. This aspect of the district court's injunction (which the Seventh Circuit declined to stay) plainly warrants this review and swift reversal, for at least two reasons. First, this Court's precedent prohibits federal courts from changing the rules of an ongoing or rapidly approaching election. The district court's order upends a key aspect of Wisconsin's election less than a week before election day. Second, requiring a state to permit unlimited absentee voting for almost a week *after* election day presents significant dangers to election integrity, voter confidence and the orderly administration of an election that already has strained state resources due to the difficult circumstances associated with COVID-19.

Because Wisconsin's election is already in full swing, and set to conclude on Tuesday, April 7, the Republican National Committee, Republican Party of Wisconsin and the Wisconsin Legislature (collectively, "Applicants") respectfully ask for an **immediate administrative stay**, in order to prevent further voter confusion and unjustified interruption of ongoing election processes and, thereafter, a stay pending resolution of the Applicants' appeal. **Specifically, Applicants seek a stay of the district court's injunction to the extent it requires the State to count**

absentee ballots postmarked after April 7, thus clarifying that absentee ballots must be postmarked (or personally delivered to the polls) no later than April 7 in order to be counted. Given the date of the election, and to provide clarity to voters, Applicants request the stay pending appeal be issued **no later than Monday, April 6.**

The Respondents—to their credit—never requested the drastic remedy issued below. Their concern was only that ballots cast on or before April 7 might not *arrive* at polling places until after election day, due to the significant increase in absentee voting during the current public health crisis and the possibility that mail service was slowed. That would normally cause the ballots to be invalidated under Wis. Stat. § 6.87(6), which requires that a “ballot shall be returned so it is delivered to the polling place no later than 8 p.m. on election day.” Respondents thus sought only to ensure that ballots postmarked by election day—that is, votes that were *cast* on or before election day—would be counted even if they arrived by mail a few days later. The district court went far beyond that concern, extending the deadline for the receipt of absentee ballots until 4 p.m. on Monday, April 13, and expressly declining to require any postmark or other evidence that the late-arriving ballot was actually completed on or before election day. This means that tens of thousands of Wisconsin residents will be permitted to vote *after* the election-day deadline.

The relief that Applicants seek here is exceedingly modest. Applicants appreciate the challenges that the current pandemic creates for voters and election officials. They have not appealed other adjustments made by the district court, such

as its extension of the deadlines to remotely register to vote and to request an absentee ballot.¹ And although Applicants maintain that the issue of late-arriving ballots is premature and could be addressed when and only if the predicted mail delays actually materialize, Applicants only ask for a partial stay of the portion of the district court's order, making clear that the extension of the deadline for the receipt of ballots applies only to those that were postmarked (or otherwise delivered) by April 7. This would give the Respondents the relief they actually requested, respect this Court's warnings about courts altering the rules on the eve of elections, and prevent the serious possibility of fraud and misconduct created by the district court's order.

OPINIONS BELOW

The district court issued three orders, one granting a temporary restraining order, one granting a preliminary injunction, and one clarifying that preliminary-injunction order, which are unreported, but attached at App. 61–81, App. 8–60, and App. 5–7. The Seventh Circuit's order granting in part and denying in part the Legislature's emergency motion for stay is unreported, but attached at App. 1–4.

JURISDICTION

This Court has jurisdiction over this Application under 28 U.S.C. §§ 1254(1) and 1651(a). The Republican National Committee and Republican Party of Wisconsin

¹ Notably, the decision below is the only case to date that has granted relief affecting an impending election due to claims arising from the challenges associated with COVID-19. See *Williams v. DeSantis*, No. 1:20-cv-00067 (N.D. Fla. Mar. 16, 2020); *Mays v. Thurston*, No. 4:20-cv-341 (E.D. Ark. voluntarily dismissed Mar. 31, 2020); *League of Women Voters of Ohio v. LaRose*, No. 2:20-cv-01638 (S.D. Ohio Apr. 3, 2020).

intervened as defendants before the district court and have standing. *See Town of Chester, N.Y. v. Laroe Estates, Inc.*, 137 S. Ct. 1645, 1651 (2017); *Virginia House of Delegates v. Bethune-Hill*, 139 S. Ct. 1945, 1951 (2019). Further, the Seventh Circuit correctly concluded that “the Wisconsin State Legislature has standing to pursue this appeal, and that the district court erred in refusing to permit the Legislature to intervene in the case below.” App. 4 (citing *Bethune-Hill*, 139 S. Ct. 1945; *Planned Parenthood of Wis., Inc. v. Kaul*, 942 F.3d 793 (7th Cir. 2019)). Sections 13.365(3) and 803.09(2m) of the Wisconsin Statutes are exactly the types of statutes that this Court discussed in *Bethune-Hill*, which permit the Legislature “to litigate on the State’s behalf . . . in a defined class of cases,” that is, when, as here, a state statute is alleged to be unconstitutional. 139 S. Ct. at 1952.

CONSTITUTIONAL AND STATUTORY PROVISIONS INVOLVED

This case involves the First Amendment to the United States Constitution, the Due Process Clause of the Fourteenth Amendment to the United States Constitution, Wisconsin Statute Section 6.87(6), and Sections 1983 and 1988 of Chapter 42 of the United States Code. All are reproduced in the Appendix beginning at App. 82.

STATEMENT

Under Wisconsin law, a “[s]pring election” must be “held on the first Tuesday in April to elect judicial, educational and municipal officers, nonpartisan county officers and sewerage commissioners and to express preferences for the person to be the presidential candidate for each party” in a Presidential election year. Wis. Stat. § 5.02(21). The State offers voters a generous, no-excuse-needed absentee voting

option. *See* Wis. Stat. § 6.85(1). But absentee voting, like all voting, must be completed by election day. That is why Wisconsin law provides that an absentee ballot “shall be returned so it is delivered to the polling place no later than 8 p.m. on election day.” Wis. Stat. § 6.87(6). Put another way, if a voter mails in an absentee ballot, but that ballot arrives at the clerk’s office after election day, that vote does not count.

Absentee voting in Wisconsin’s April 7 Election has been in full swing for weeks, and the interest in this election is understandable, given that it includes a presidential primary, a Wisconsin Supreme Court race, a constitutional amendment ballot initiative, and important local races. Under Wisconsin law, absentee ballots can be sent as soon as they are printed by the local clerk, which must begin “immediately upon receipt of the certified list of candidates’ names from the commission,” Wis. Stat. § 7.10(2), which certification occurred on March 3.² In the weeks following that certification, more than 1.1 million Wisconsinites received absentee ballots, and more than 561,000 already have been returned.³ So long as these ballots comply with all Wisconsin state law—including the photo ID and signature requirements—they will be counted, just like any ballot cast on election day.

² *See* Wisconsin Elections Commission, *Candidates on Ballot by Election* (rev. Mar. 3, 2020) available at https://elections.wi.gov/sites/elections.wi.gov/files/2020-03/Candidates%20on%20Ballot%20By%20Election_3_3_2020.pdf.

³ *See* Wisconsin Elections Commission, *Absentee Ballot Report - April 7, 2020 Spring Election and Presidential Preference Primary*, available at <https://elections.wi.gov/node/6808>.

The present Application arises from a series of lawsuits filed against each of the Wisconsin Elections Commissioners, relating to Wisconsin’s April 7 election. Only one of the legal theories raised in those lawsuits is relevant to this Application. On March 18, the Democratic National Committee and Democratic Party of Wisconsin sued the Commissioners, in the Western District of Wisconsin. D.Ct. Doc. 1. Those respondents then moved for a temporary restraining order or preliminary injunction, arguing, as relevant here, for relief because “the Election Day deadline prevents having ballots counted even if they are sent on or before Election Day.” D. Ct. Doc. 3 at 9. “There is, then, ample time to accept and count validly cast absentee ballots that are postmarked by Election Day but arrive at some point thereafter.” D. Ct. Doc. 3 at 11. The district court denied this relief as unjustified by the “limited record before it.” App. 17.⁴

Respondents thereafter moved for reconsideration of the district court’s denial of the preliminary injunction on this issue, arguing that “[b]ecause clerks are delayed in processing absentee requests—due both to the unprecedented influx and social distancing—the absentee ballots resulting from those requests will get sent out later, *arriving to the voter’s home most likely within two to four days of the election.*” D. Ct.

⁴ The district court did extend the time to register to vote online by an additional twelve days, from March 18 to March 30. App. 80. It also granted the motion to intervene as defendant filed by the Republican National Committee and Republican Party of Wisconsin, D. Ct. Doc. 85 at 12, and denied intervention by the Legislature, D. Ct. Doc. 85 at 12, and then denied the Legislature’s renewed intervention motion, even after the Wisconsin Attorney General withdrew from representing the defendant Elections Commissioners and the Commissioners refused to defend several of the challenged laws. D. Ct. Doc. 163.

Doc. 62 at 12 (emphasis added). “There is, then, ample time to accept and count validly cast absentee ballots that are postmarked by Election Day but arrive at some point thereafter. Doing so would not violate Wisconsin’s interest in finality of elections.” D. Ct. Doc. 62 at 16. Applicants responded by explaining that this request was premature, given that it was unclear whether the Respondents’ worries about delays in absentee ballot and mailing processing would actually materialize: “the Court may simply wait until after election day to determine whether any remedy is necessary or appropriate.” D.Ct. Doc. 90 at 25.⁵

On April 2, the district court entered a preliminary injunction that mandates, in part,⁶ that the State may no longer apply its 8:00 p.m. election-day deadline for the receipt of absentee ballots, moving the deadline to 4:00 p.m. on April 13. App. 59. This order unexpectedly expanded the moderate (although still premature) remedy that the Respondents had asked for into a far more sweeping authorization for post-election day voting. The district court explained that it was “simply moving the statutory absentee receipt deadline” to April 13 *even for ballots voted and postmarked after April 7, election day*, meaning that there would be up to six days of absentee

⁵ In a consolidated case, also part of this appeal, a different group of plaintiffs also asked for a temporary restraining order blocking the “the requirement that polling places receive absentee ballots by 8:00 p.m. on Election Day to be counted,” *Lewis*, D.Ct. (-284) Doc. 17 at 2, but did not mention this request or develop it in their supporting memorandum. *Lewis* D.Ct. (-284) Doc. 18.

⁶ The district court also further extended the time to request an absentee ballot to April 3, and it created an exception to the Wisconsin statute requiring absentee ballots to be witnessed by another person in order to be effective. App. 59. Applicants did not seek to stay the extension of the request deadline, and the Seventh Circuit stayed the portion of the order regarding the witnessing requirements. App. 3–4.

voting after election day. App. 47. The entirety of the court’s rationale for this unrequested relief was that “[n]o persuasive evidence suggests that further altering statutory requirements will impose tangible benefits or harms.” App. 47. The district court later amended this portion of its injunction by further enjoining both the Elections Commissioners and non-parties “from releasing any unofficial results until April 13, 2020, at 4:00 p.m. or as soon thereafter as votes can be tabulated.” App. 6. It cited no authority for its power to enjoin non-parties.

Applicants immediately moved for a stay from the Seventh Circuit. Last night, on April 3, the Seventh Circuit denied Applicants’ emergency motion for stay on this portion of the district court’s order. It offered no explanation at all, despite noting elsewhere that “[c]ourt orders affecting elections . . . can themselves result in voter confusion and consequent incentive to remain away from the polls. As an election draws closer, that risk will increase.” App. 3 (citing *Purcell v. Gonzalez*, 549 U.S. 1, 4 (2006) (alterations in original)). The Seventh Circuit separately held that the district court had improperly denied the Legislature’s motion to intervene, and that the Legislature had standing to pursue this appeal under this Court’s decision in *Bethune-Hill*. App. 4.

REASONS FOR GRANTING THE APPLICATION

This Court will grant a stay of a district court’s order, including in a case still pending before the court of appeals, if there is “(1) a reasonable probability that four Justices will consider the issue sufficiently meritorious to grant certiorari; (2) a fair prospect that a majority of the Court will vote to reverse the judgment below; and (3)

a likelihood that irreparable harm will result from the denial of a stay.” *Hollingsworth v. Perry*, 558 U.S. 183, 190 (2010) (per curiam); *San Diegans for the Mt. Soledad Nat’l War Mem’l v. Paulson*, 548 U.S. 1301, 1302 (2006) (Kennedy, J., in chambers); *see also Nken v. Holder*, 556 U.S. 418, 427–29 (2009); *West Virginia v. EPA*, 136 S. Ct. 1000 (2016); *Anderson v. Loertscher*, 137 S. Ct. 2328 (2017). Applicants have satisfied these standards here.

I. There Is A Reasonable Probability That Four Justices Would Vote To Grant Review And A Fair Prospect That This Court Would Reverse A Decision Upholding An Injunction Allowing Voting After Election Day, Issued While The Election Was Already Ongoing

A. This Court And The Courts Of Appeals Have Repeatedly Stayed Changes To Elections Laws On The Eve Of Election Day

This Court has repeatedly stayed orders directing last-minute changes to election laws “[g]iven the imminence of the election.” *Purcell*, 549 U.S. at 5. The Court has identified an imminent election as one “just weeks” away—while the election here is just *days* away. *Id.* at 4. Consequently, this Court’s customary practice is to stay lower court orders directing changes to election laws on the eve of Election Day and “allow the election to proceed without an injunction suspending [election] rules.” *Id.* at 6. This is a long-standing practice. *See, e.g., Williams v. Rhodes*, 393 U.S. 23, 34–35 (1968) (denying relief because it would result in “serious disruption of [the] election process” and “confusion” for voters).

In just the past few years, the Court time and again has stayed orders changing election laws when there were imminent deadlines—even with much more time remaining than the changes ordered here a mere *five days* before Election Day. *See,*

e.g., *North Carolina v. League of Women Voters of N. Carolina*, 574 U.S. 927 (2014) (this Court, 27 days before Election Day, stayed a lower court order changing election laws 32 days before Election Day); *Husted v. Ohio State Conference of N.A.A.C.P.*, 573 U.S. 988 (2014) (this Court, 36 days before Election Day, stayed a lower court order changing election laws 61 days before Election Day); *Purcell*, 549 U.S. at 4-5 (this Court, 18 days before Election Day, stayed a lower court order changing election laws 33 days before Election Day); *see also Abbott v. Perez*, 138 S. Ct. 49 (2017) (staying order directing that federal court would change election law unless Legislature did so within 3 business days, *see Abbott v. Perez*, 138 S. Ct. 2305, 2318 (2018)); *Gill v. Whitford*, 137 S. Ct. 2289 (2017) (staying order directing that federal court would change election law unless Legislature did so within approximately 5 months); *Perry v. Perez*, 565 U.S. 1090 (2011) (this Court, 6 days before candidate registration deadline, stayed a lower court order changing election laws 22 days before candidate registration deadline).

This Court’s practice of granting stays to maintain the status quo of state election laws ensures that voters, candidates, and political parties know and adhere to the same neutral rules throughout the election process. As *Purcell* explained, “[c]onfidence in the integrity of our electoral process is essential to the functioning of our participatory democracy.” 549 U.S. at 4. Fundamental fairness of the consistent application of established, accepted rules necessarily furthers the “integrity of our electoral process.” *Id.* Conversely, “voter confusion” is a paramount concern whenever

a court orders changes to established state election laws on the eve of an election. *Id.* at 4–5. And “[a]s an election draws closer, that risk will increase.” *Id.* at 5.

The courts of appeals have regularly followed the *Purcell* principle by staying orders changing election laws when an election is imminent. *See, e.g., Crookston v. Johnson*, 841 F.3d 396, 397–98 (6th Cir. 2016); *Veasey v. Perry*, 769 F.3d 890, 892–96 (5th Cir. 2014); *Lair v. Bullock*, 697 F.3d 1200, 1214 (9th Cir. 2012); *Respect Maine PAC v. McKee*, 622 F.3d 13, 14, 16 (1st Cir. 2010); *Ne. Ohio Coal. for Homeless and Serv. Employees Int’l Union*, 467 F.3d 999, 1003–04, 1012 (6th Cir. 2006); *Sw. Voter Registration Educ. Project v. Shelley*, 344 F.3d 914, 916–17, 919–20 (9th Cir. 2003) (en banc) (per curiam); *Page v. Bartels*, 248 F.3d 175, 195–96 (3d Cir. 2001).

Indeed, in rejecting other challenged portions of the district court’s injunction, the Seventh Circuit acknowledged and applied this principle. App. 3–4. But—without any analysis or explanation—it refused to stay the relevant portion of the district court’s injunction permitting the counting of ballots that were cast up to almost a week *after* Election Day. This change to Wisconsin law was imposed by the district court merely five days before the scheduled election, when absentee and early voting had already begun.

This was a deeply consequential and disruptive change. It will inevitably sow confusion over when voters need to submit their absentee ballots. A last-minute change to a voter deadline carries an increased risk that voters will not appreciate when votes actually must be cast. *See Purcell*, 549 U.S. at 4–5. Additionally, the district court’s order *encourages* absentee voters to hold their absentee ballots beyond

the April 7 Election Day, evaluate reports (authorized or otherwise) about exit polling and in-person voting, and then cast their votes days after in-person voting has concluded. *See infra* Part I.B.2. This information gap creates a fundamental unfairness that undermines the integrity of the election. Absentee voting should not be a procedure that gives some voters dramatically different incentives and information than others, permits advocacy groups to strategically chase down ballots that were not cast on election day, and otherwise disrupts Wisconsin statutes that aim to separate cleanly the time for ballot casting and ballot counting.

B. Under the *Anderson/Burdick* Framework, The State’s Interest In Avoiding A Two-Track Election—In Which Numerous Voters Might Strategically Cast Ballots *After* Election Day Results Are Announced—Is Overwhelming

1. To prevail on a vote-burden claim under *Anderson/Burdick*, *see Burdick v. Takushi*, 504 U.S. 428 (1992); *Anderson v. Celebrezze*, 460 U.S. 780 (1983), Respondents must satisfy a two-step inquiry, bearing a heavy burden at each turn. First, they must establish both a cognizable burden on the right to vote from a challenged law and that burden’s severity. *Timmons v. Twin Cities Area New Party*, 520 U.S. 351, 358 (1997). Alleged hardships are measured against the baseline of “the usual burdens of voting.” *Crawford v. Marion Cty. Election Bd.*, 553 U.S. 181, 198 (2008) (controlling opinion of Stevens, J.). Applying that standard, this Court has held that “making a trip to the [D]MV, gathering the required documents, and posing for a photograph surely do[] not qualify as a substantial burden on the right to vote.” *Id.* at 198.

At the second step, Respondents must show that the alleged burden outweighs the State's interest. *Id.* If the burden on the Respondents' constitutional rights is "severe," a state's regulation must be narrowly drawn to advance a compelling state interest. *Burdick*, 504 U.S. at 434. If, on the other hand, the burden is merely "reasonable" and "nondiscriminatory," the State's legitimate regulatory interests suffice. *Id.* In either case, as Judge Easterbrook has explained, a justification's sufficiency is generally a "legislative fact" that must be accepted if reasonable, not an "adjudicative fact[]" subject to courtroom testing. *Frank v. Walker*, 768 F.3d 744, 750 (7th Cir. 2014); see *Crawford*, 553 U.S. at 194–97 (opinion of Stevens, J.).

Last, Respondents raising a facial challenge to a voting law—seeking its across-the-board invalidation—must clear a final, especially steep hurdle. *Id.* at 200 ("heavy burden of persuasion"). Courts "must consider only the statute's broad application to all [of the State's] voters," and the "facial challenge must fail where the statute has a plainly legitimate sweep." *Id.* at 202–03 (citation omitted). Hence the challenge to Indiana's photo ID law in *Crawford* fell short because "[t]he application of the statute to the vast majority of Indiana voters [was] amply justified." *Id.* at 204. Likewise *Burdick* "upheld Hawaii's prohibition on write-in voting despite the fact that it prevented a significant number of voters from participating in Hawaii elections in a meaningful manner." *Id.* at 190 (quotation omitted).

2. In this exceptionally important case, there is a reasonable likelihood this Court would grant review and reverse the lower court's holding that the Constitution

compels Wisconsin to allow absentee ballots to be cast after election day—a fundamental change to Wisconsin’s election procedures.

To begin, the district court’s decision to grant a form of extraordinary relief that Respondents never requested below itself supports the granting of a stay. *See Heckler v. Redbud Hosp. Dist.*, 473 U.S. 1308, 1312–13 (1985) (Rehnquist, J., in chambers) (noting that a district court’s granting “sweeping ‘preliminary’ relief” that the plaintiff “did not even seek” “would prompt at least four Members of this Court to grant review should the Court of Appeals affirm that aspect of the District Court’s order”); *see also C.I.R. v. McCoy*, 484 U.S. 3, 6 (1987) (court of appeals could not grant relief “beyond” what could have been sought from the Tax Court below).

Unsurprisingly, Respondents did not introduce any evidence to support a claim that post–election day absentee voting would be necessary to avoid unduly burdening anyone’s right to vote. *See App. 44.* Their concern focused instead on the potential burden that Wis. Stat. § 6.87(6) imposed on voters who would receive and complete their ballots by election day, but—due to the undisputed increase in absentee voting and the claimed potential for slowdown in mail service—would not be able to ensure they would be delivered to their polling place on election day. *App. 44; D.Ct. Doc. 62 at 3–4, 8.* The Respondents thus plainly never showed that there would be *any* burden on voting rights for Respondents to put their ballots in the mail on or before election day.

Second, the State’s interests in avoiding what are effectively *two* voting deadlines—here, one on April 7 and another on April 13—would amply justify any

burden imposed by its statute. Requiring that all voters vote by a single date, either by absentee ballots sent by that date or by voting in person, ensures—indeed, is *necessary* to ensure—the “orderly administration” of an election, *Crawford*, 553 U.S. at 196 (controlling plurality of Stevens, J.).

Having only one voting deadline also furthers the State’s “compelling interest in preserving the integrity of its election process,” *Eu*, 489 U.S. at 231. Consider the consequences of the district court’s order. Because municipal clerks in Wisconsin must publicize the returns of ballots cast on or after election day *as soon as they are counted*, see Wis. Stat. § 7.51(4)(b), (c), under the district court’s order, electors would have an incentive to *withhold* their ballots until the bulk of returns are released, perhaps even choosing not to cast their ballots at all if early returns suggest that their favored candidate will not likely overcome an election-night deficit. Meanwhile, campaigns would seize upon the opportunities presented under this rolling, single-election model, pressuring electors who had not yet participated to cast their ballots for this or that candidate, all the while undermining all timely-cast ballots and, more broadly, casting a cloud of illegitimacy over the entire election. Indeed, the League of Women Voters has previously recognized that projections “for election night victory when polls are open for any given office serve[] no positive purpose in the election process and may indeed have serious and harmful effects on voter confidence in the integrity of the election system and in the value of an individual vote.” Hearing Before the Task Force on Elections of Comm. of H. Admin. and Subcomm. on Telecomm.,

Cons. Protection, and Fin. of Comm. on Energy and Commerce, 97th Cong. 66 (1981) (statement of Dorothy Ridings, President, League of Women Voters).

Although the district court belatedly tried to diminish this risk by amending its order to require that returns not be released before April 13, it failed to actually protect against the harm its order creates. Nor is there any practicable way for the court to fix these problems. The district court instructed the Elections Commission and “any inspector” not to “releas[e] any unofficial results until April 13, 2020, at 4:00 p.m. or as soon thereafter as votes can be tabulated,” App. 6, but Wisconsin law does not impose the duty of releasing election results on the Commission or any inspectors in the first place—it places that duty instead on *municipal clerks*. See Wis. Stat. § 7.51(4)(b) (“The chief inspector, or one of the inspectors appointed by him or her, immediately after the votes are tabulated or counted at each election, shall *report* the returns of the election *to the municipal clerk*. . . . *The clerk shall then make the returns public*.” (emphasis added)). In any event, the court could not have stopped Wisconsin’s municipal clerks from releasing election-day results even if it had tried, since municipal clerks are not parties to these lawsuits and therefore not subject to the court’s powers. *Smith v. Bayer Corp.*, 564 U.S. 299, 305 (2011) (“[A] court’s judgment cannot bind nonparties.”).⁷ Additionally—given the number of clerks and other

⁷ Although the Wisconsin Elections Commission does have some enforcement authority over election officials—for example, it may commence investigations upon a complaint and bring actions for violations of Chapters 5 through 12, see Wis. Stat. §§ 5.05(2m), 5.06, 5.08, and 5.081—these enforcement matters are triggered only once there is some kind of allegation that an election statute has been violated. See Wis. Stat. § 5.06(1) (“Whenever any elector of a jurisdiction or district served by an election official believes that

parties involved in the counting process—it is doubtful and unrealistic for any court order to prevent widespread leaks about the progress of a controversial and hotly contested state election.

The district court portrayed its extension of the time for voting as an act of judicial modesty. Yet even as it disclaimed any desire to “further alter[] statutory requirements” by “add[ing] a postmarked-by date requirement,” it undermined the most important part of section 6.87(6). App. 47. The deadline for the delivery of ballots is the demarcation point for two distinct phases of the election: the time for casting ballots, and the time for counting them. Wisconsin law generally observes this important distinction. *See* Wis. Stat. § 6.88(1) (requiring absentee ballots generally to remain “unopened” when received); Wis. Stat. § 7.51(1) (requiring canvassing of results “[i]mmediately after the polls close” (emphasis added)).⁸

Given the challenges imposed by COVID-19, it is understandable that the district court wanted to ensure that voters who can complete their ballots by election day, but—due to mail delays and safety concerns about physically bringing their

a decision or action of the official or the failure of the official to act with respect to any matter concerning...election administration”). Thus, should a municipal clerk announce or otherwise publicize the unofficial election results, the harm will have occurred.

⁸ Wisconsin is hardly alone in prohibiting counting or release of voting results while voting is ongoing. Numerous states contain similar laws advancing this interest. *See, e.g.*, Alaska Admin. Code tit. 6, § 27.175; Ill. Admin. Code tit. 26, § 205.10; 950 Mass. Code Regs. 54.03; Code Me. R. tit. 01-001 Ch. 803, § 5; Mo. Code Regs. Ann. tit. 10, § 70-6.010; S.D. Codified Laws § 12-19-46. Others prohibit the publishing of results before polls are closed or votes counted. *See* 8 Colo. Code Regs. § 1505-1:7; Iowa Code Ann. § 53.23. And several states make it a crime to release results before the polls are closed. Fla. Stat. Ann. § 101.68; Neb. Rev. Stat. Ann. § 32-1545; N.M. Stat. Ann. § 1-20-19.1.

ballot to the polling place—could not deliver them by election day.⁹ But that concern cannot justify the fundamentally different relief of allowing voters to wait and actually cast their vote for nearly a week after the deadline for everybody else. Compounding its error, the court conceded that there was “no persuasive evidence” for keeping April 7 as the date by which voting must be completed. This amounted to placing the burden of proof under *Anderson-Burdick* on the State and not the Respondents, where it belongs. And it was especially unfair to reallocate this burden when this issue had not even been squarely raised by the parties before the district court’s order.

Finally, because there was no evidence to sustain this claim as to any voter (the Respondents having not even tried), there was also *a fortiori* insufficient evidence to invalidate application of Section § 6.87(6) as to *all* voters. In other words, because “[t]he application of [this] statute to the vast majority of [Wisconsin] voters [was] amply justified,” which the Respondents did not and could not refute, the facial remedy that the court ordered was improper. *Crawford*, 553 U.S. at 204 (opinion of Stevens, J.).

II. Applicants Will Suffer Irreparable Harm Absent A Stay

Any time a State is enjoined by a court from effectuating statutes enacted by the representatives of its people, it suffers a form of irreparable injury. *Abbott v.*

⁹ Along this line, the Wisconsin Elections Commission made clear to the district court that they did “not object to any absentee ballot *postmarked by* April 7, 2020 and received by April 13, 2020 by 4:00 p.m.” App. 44 (emphasis added).

Perez, 138 S. Ct. 2305, 2324 & n.17 (2018). And the “State indisputably has a compelling interest in preserving the integrity,” *Eu*, 489 U.S. at 231, and “orderly administration,” *Crawford*, 553 U.S. at 196 (controlling plurality of Stevens, J.), of its elections.¹⁰ Further, the Republican National Committee and Republican Party of Wisconsin have an interest in having their members’ rights as voters not undermined by eleventh-hour changes to election laws, including by permitting post-election voting. The irreparable harm to Applicants from this injunction is especially grave, given that the court has enjoined a state law imposing a deadline on voting on the eve of a statewide election. Applicants have explained these significant burdens and harms flowing from this injunction above. *See supra* Part I.B.2.

On the other end of the equitable balance, the district court failed to offer anywhere near sufficient equitable reasons for its decision to allow voting after election day. The court expressed concern that ballots diligently returned may not be counted, under the April 7 statutory deadline. App. 45–46. But the Respondents submitted evidence to support their point only that it would be hard for voters to get their ballots *to clerks* by election day, due to the speed of the mail, even though the ballots would—in fact—be postmarked by election day. *See supra* Part I.B.2. The Respondents did not provide *any* evidence to justify allowing voters to mail in their ballots after election day, since they were never even asking for this relief.

¹⁰ Here, the Legislature is speaking for the State of Wisconsin and its interests in the validity of its laws, including its election laws, *see Bethune-Hill*, 139 S. Ct. at 1952; Wis. Stat. §§ 13.365(3), 803.09(2m), as the Seventh Circuit properly concluded, App. 4.

CONCLUSION

This Court should issue the requested partial stay.

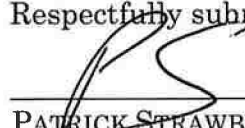
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In the Supreme Court of the United States

REPUBLICAN NATIONAL COMMITTEE, ET AL.
APPLICANTS,

v.

DEMOCRATIC NATIONAL COMMITTEE, ET AL.

THE WISCONSIN STATE LEGISLATURE,
APPLICANTS,

v.

DEMOCRATIC NATIONAL COMMITTEE, ET AL.

APPENDIX TO EMERGENCY APPLICATION FOR STAY

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